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Provision of May 9, 2024
Register of provisions
n. 363 of May 9, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the complaint submitted to the Guarantor pursuant to Article 77 of the Regulation, on October 19, 2023, by Ms. XX, who reported an alleged violation of the Regulation, specifically regarding the lack of response to the request for access to personal data made pursuant to Articles 15 of the Regulation and 2-terdecies of Legislative Decree 196/2003 (Code regarding the protection of personal data, as updated by Legislative Decree 101/2018) against Unicredit S.p.a.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTER: Prof. Ginevra Cerrina Feroni;

PREMISE

1. The complaint against the credit institution and the investigative activity.

With the complaint submitted to this Authority on October 19, 2023, Ms. XX reported that she had not received a response from Unicredit S.p.a. (hereinafter "Unicredit" or "the Bank") to a request for access to personal data made on June 4, 2023, pursuant to Articles 15 of the Regulation and 2-terdecies of the Code as the heir of the deceased XX.

Following the invitation issued by the Office to provide observations regarding the facts subject to the complaint and to voluntarily comply with the request made by the complainant, the Bank, with a note dated January 29, 2024 (sent to the complainant and simultaneously to this Authority), communicated the requested information specifying that:

- a) "the response to the aforementioned request, specifically related to the ongoing financing with the Bank (n. [...]), was provided with reference to the data processed, contained in the contractual documents related to the financing itself and in the documentation supporting the creditworthiness assessment carried out by the Bank (containing, in particular, the income data and the expenditure estimates submitted by Mr. XX at the time of the financing requests)";
- b) "such documents and data were delivered to you, during the meetings that took place from time to time, by our agency in Casale Monferrato, following the death of Mr. XX and the delivery of the succession documentation. Following this delivery, the Agency believed it had satisfied your requests, without the need to provide further information";
- c) "Regarding the aforementioned financing, we clarify that the Bank assessed creditworthiness through the examination of the income, asset documentation, and expenditure estimates produced by Mr. XX - of which, as mentioned, a copy was provided to you by our agency in Casale Monferrato - as well as other informative elements acquired during the investigation of the practice, including through the consultation of the Crif S.p.A., Experian S.p.A., CTC – Consortium for the Protection of Credit

(so-called S.I.C.) and the Central Risks of the Bank of Italy”;

d) finally, “As already communicated verbally, we confirm that, following a check of our systems and archives, the financing in question is not covered by insurance policies”.

With a subsequent note dated February 23, 2024, the Bank, in response to the complainant's reply, which, in a communication dated February 8, 2024, specified that she had never received “a copy of the documents on the basis of which the creditworthiness of my brother [...] was assessed” but “only a copy of his income tax return for the year 2018”, supplemented the previous response, explaining how, in this case, “the procedure consulted only Crif S.p.A. and Experian S.p.A. [...]”, while “there were no reports in the Central Risks of the Bank of Italy. After completing the investigation with further information derived from the income, asset documentation, and expenditure estimates produced by Mr. XX and from internal elements, the final assessment of the three practices was positive. In particular, the following internal evaluation elements were considered: the history and consistently regular operation of the relationship, the channeling of the pension and monthly rent payments, and the absence of negative elements”.

With the same note, the Bank, also specifying that “the financing n. 188[...] was requested to cover undocumented medical expenses (liquidity)”, provided “again a copy of the two expenditure estimates submitted by Mr. XX and the requests/contracts for the three financings, specifying that there is no further documentation regarding the aforementioned financings”.

2. The initiation of the procedure.

For the above reasons, with a note dated March 12, 2024, the Office proceeded to notify the Bank the initiation of the procedure for the adoption of the measures referred to in Articles 58, paragraph 2, and 83 of the Regulation, in accordance with the provisions of Article 166, paragraph 5, of the Code, in relation to the violation of Articles 12, paragraphs 3 and 4, and 15 of the Regulation.

By the same note, the Bank was invited to produce defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, Law No. 689 of November 24, 1981).

The credit institution, on April 5, 2024, submitted its defensive writings, which are fully referenced here, in which it highlighted that the request made by the complainant on June 4, 2023, was “sent to a different corporate PEC address than the one indicated in the notice, which was also posted in the Branch and published on the website, precisely to facilitate the exercise of rights (including the right of access to personal data) by the interested parties and to ensure an appropriate, complete, and timely follow-up to the requests.” It provided some clarifications. In particular, it stated that:

the complainant, “during her visits to the UniCredit branch [...] Casale Monferrato (AL), had already received a complete copy of all the requested documentation with specific regard to the contractual documents signed by the customer and the documentation used for the evaluation of the financing requests, which included the income documentation previously submitted by the customer and accompanied by cost estimates”; for this reason, “the bank had reasonably believed, in good faith, that the requests made by Ms. XX pursuant to Articles 15 of Regulation (EU) 2016/679 and 2-terdecies of Legislative Decree No. 196/2003 were to be considered already fully satisfied with the immediate delivery of all the documentation related to financing that was already perfectly known to the complainant”;

the further response provided on February 23, 2024, “added nothing” compared to what was already available to the interested party, but rather “simply specified the well-known detail of the consultation of databases for the procedural process of financing. The absence of negative evidence is indirectly but easily confirmed by the positive outcome of the requests and the consequent disbursement of the financing. It is therefore unclear what the other and different ‘personal data’ were to which timely access would have been denied”;

“in any case, UniCredit has implemented procedures for managing responses to requests for the exercise of rights (including the right of access) by interested parties, distinct by category of interested parties. In particular, the procedure provided for the exercise of rights by customers (different from that for managing requests/exercise of rights by employees) is overseen and acted upon by a structure of the Bank (‘Claims’), specifically trained to handle such requests promptly and accurately”; in particular, the bank, “aware that the interested party may choose a channel different from the one provided and

advertised, has implemented regular training cycles for all its personnel (including branch personnel); the GDPR course, indicated among the training courses that employees must complete by the given deadline (passing the related skills verification test), was last distributed precisely in the second half of 2023.”

Furthermore, following what occurred in the case at hand, UniCredit, “in order to further increase the sensitivity and awareness of the personnel, has swiftly and promptly launched a specific Action Plan aimed at consolidating the training of employees in identifying and fully satisfying customers in exercising their rights in privacy matters [...]”, with particular regard to “the case of a Customer who requests banking documentation and simultaneously makes a request for ‘access to personal data’; more specifically, “within the framework of the training campaign, the Bank’s personnel have been made aware to pay particular attention to the tenor and overall content of the requests and, in doubtful cases, invited to promptly and immediately involve the Bank’s structures responsible for responding to the requests of interested parties, in the ways and in compliance with legal deadlines.”

3. The regulations on the protection of personal data.

Article 12 of the Regulation states that “the data controller shall take appropriate measures to provide the data subject with all [...] communications referred to in Articles 15 to 22 and Article 34 related to the processing” (paragraph 1) and that “the data controller facilitates the exercise of the rights of the data subject pursuant to Articles 15 to 22” (paragraph 2).

Paragraph 3 of the same article specifies that “the data controller shall provide the data subject with information regarding the action taken concerning a request pursuant to Articles 15 to 22 without undue delay and, in any event, no later than one month from the receipt of the request itself. This period may be extended by two months, if necessary, taking into account the complexity and number of requests. The data controller shall inform the data subject of such extension and the reasons for the delay within one month of receiving the request.”

According to paragraph 4 of the same article, the data controller, if it does not comply with the request of the data subject, “informs the data subject without delay, and at the latest within one month from the receipt of the request, the reasons for the non-compliance and the possibility of lodging a complaint with a supervisory authority and of bringing a judicial appeal.”

Article 15, paragraph 1, of the Regulation also provides that “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, if that is the case, to obtain access to the personal data and to the [...] information [indicated in the same Article 15].”

Article 2-terdecies, paragraph 1, of the Code finally states that “the rights referred to in Articles 15 to 22 of the Regulation concerning personal data relating to deceased persons may be exercised by those who have a legitimate interest, or act to protect the data subject, as their representative, or for family reasons deserving protection.”

4. The Authority’s assessments and the outcome of the investigation.

Following the documentation submitted and the statements made by the party during the proceedings, it is noted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code. It has emerged that, in the case at hand, Unicredit S.p.a. did not respond to the request for access to personal data made by the complainant within the time limit set by Article 12, paragraph 3 of the Regulation (“without unjustified delay and, in any case, at the latest within one month from the receipt of the request”), nor did it inform the applicant, within the same time frame, of the reasons for the non-compliance as well as the possibility of lodging a complaint with a supervisory authority or a judicial appeal (Article 12, paragraph 4 of the Regulation).

Only following the submission of the complaint and the opening of the investigation did the Bank provide the interested party with the requested information in a complete manner, clarifying the reasons that led to the aforementioned delay; in particular, in the case at hand, the Bank failed to communicate to the interested party the requested data within the legal time limits, believing that the

request for access to the data concerning the deceased should be considered satisfied due to having already responded to the request for banking documentation, made pursuant to Article 119 of the Consolidated Banking Act (Legislative Decree No. 385/1993).

In this regard, it must be recalled that Article 15 of the Regulation recognizes to the data subject “the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed” and, consequently, in the affirmative case, the right “to obtain access to the data” themselves and to further information; this is also in order to verify the accuracy and completeness of the data being processed.

5. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2 of the Regulation.

For the reasons stated above, the Authority believes that the statements made by the data controller in the defense briefs - the truthfulness of which may be subject to accountability under the aforementioned Article 168 of the Code - although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the proceedings and are insufficient to allow for their archiving, nor do any of the cases provided for by Article 11 of the Guarantor's Regulation No. 1/2019, concerning internal procedures of the Authority with external relevance, apply.

The failure to timely respond to the request for access to personal data concerning the deceased made by the complainant is indeed unlawful, as stated above, for violation of Article 12, paragraphs 3 and 4 of the Regulation; on the other hand, regarding the request to “order the data controller to satisfy the requests for exercising the rights referred to in Articles 15 to 22 of the Regulation,” considering that the Bank, upon receiving the Authority's communication, provided the complainant with the requested information, there is no basis for the adoption of an injunction by the Authority itself (Article 58, paragraph 2, letters c) and d)).

Therefore, the complaint submitted pursuant to Article 77 of the Regulation must be considered well-founded and this Authority, in exercising the corrective powers attributed to it under Article 58, paragraph 2, of the Regulation, orders the application of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, of the Regulation.

6. Order of injunction.

The violation of the aforementioned provisions entails the application of the administrative sanction provided for by Article 83, paragraph 5, letter b), of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is noted that, in this case, the following circumstances have been taken into account:

- a) the significant nature of the violation, which concerned the provisions relating to the exercise of the rights of the data subjects;
 - b) the fact that the data controller has already been the subject of previous measures under Article 58 of the Regulation in relation to the same violation;
 - c) the degree of responsibility of the data controller that is mitigated as the party, as soon as it became aware of the violation, took steps to provide the interested party with the requested information;
 - d) the cooperation with the Authority during the proceedings;
 - e) the small number of interested parties involved (one);
 - f) the organizational and training measures implemented by the data controller to avoid the failure to timely address a request for access to personal data that arrives simultaneously with a request for a copy of banking documentation pursuant to Article 119 of the Consolidated Banking Act.
- In consideration of the aforementioned principles of effectiveness, proportionality, and deterrence

(Article 83, paragraph 1, of the Regulation) to which the Authority must adhere in determining the amount of the sanction, the economic conditions of the offender were taken into account, determined based on the revenues reported in the financial statements for the year 2022, and it was also considered that the data controller has already been subject to measures pursuant to Article 58 of the Regulation.

In light of the above elements, evaluated as a whole, it is deemed appropriate to set the amount of the monetary sanction at €30,000 (thirty thousand) for the violation of Article 12, paragraphs 3 and 4, of the Regulation.

In this context, also considering the type of violation established, which concerned the principles of personal data protection, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE Garante declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out, as stated in the reasoning, for the violation of Article 12, paragraphs 3 and 4, of the Regulation.

ORDERS

Unicredit S.p.a., with registered office in Milan, Piazza Gae Aulenti, 3, C.F./P.I. 00348170101, pursuant to Article 58, paragraph 2, letter i), of the Regulation, to pay the sum of €30,000 (thirty thousand) as an administrative monetary sanction for the violations indicated in this provision;

COMMANDS

the same Unicredit S.p.a. to pay the sum of €30,000 (thirty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the deadline referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, May 9, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei